

Smt Kafia v. Purvanchal Vidhut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 22 May 2024 · 2024:AHC:93145-DB · WRIT - C No. 17508 of 2024 · **Writ disposed; bill objection relegated to Clause 6.5.**

HEADNOTE

A writ seeking revision of an existing electricity bill and permanent disconnection is disposed of by directing the consumer to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks; that application is to be decided on its own merits within one month, after which she may apply for permanent disconnection in accordance with law.

FACTUAL SUMMARY

Smt Kafia filed a writ petition in the Allahabad High Court against Purvanchal Vidhut Vitran Nigam Ltd. seeking revision of her existing electricity bill and permanent disconnection of the electricity connection granted to her. Counsel holding brief of the respondents' advocate appeared. The Division Bench recorded the nature of the relief and did not examine the correctness of the bill or the disconnection request on the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

Where a consumer seeks revision of an existing electricity bill and permanent disconnection, the writ is disposed of by directing that, if she applies under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks, the application shall be dealt with and decided on its own merits within one month; subject to compliance with that resolution, she may apply for permanent disconnection in accordance with law. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE EXISTING BILL AND ENTITLEMENT TO PERMANENT DISCONNECTION

Left to a Clause 6.5 application and a later disconnection request in accordance with law. ¶ 2